

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201702699	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 04/01/2017 12:00 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 10/1/2018	Precinct: 75
Date/Time CV Reported Sat, 04/01/2017 2:15 PM	CV Reported At: IAB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 04/07/2017 11:04 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Henry Henriquez	08780	938657	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Bandar Kayali	00439	959721	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Henry Henriquez	Force: Police Officer Henry Henriquez used a Taser against § 87(2)(b)	A . Complaint Withdrawn

Case Summary

Sgt. Erik Depasquale of the 75th Precinct reported this incident to IAB on April 1, 2017, generating original log #17-11800. The log was then forwarded to the CCRB, where it was received on April 7, 2017. At an unknown time on April 1, 2017, in front of § 87(2)(b) in Brooklyn, NY, PO Henry Henriquez of the 75th Precinct used a taser against § 87(2)(b) who was emotionally disturbed (**Allegation A**). Also present was PO Bandar Kayali of the 75th Precinct. § 87(2)(b) was transported to § 87(2)(b). He was not arrested.

The undersigned reached § 87(2)(b) by telephone on April 10, 2017. This conversation is recorded in an audio file linked to IA #5 of the digital case file. § 87(2)(b) confirmed the force allegation reported in the IAB log. However, § 87(2)(b) stated that he did not wish to take the time to meet with CCRB investigators, whether at the CCRB's office or at a convenient location near his home or place of work. He felt that although the force used against him may have been excessive, he was not injured and did not wish to take the time to initiate an investigation. § 87(2)(b)

§ 87(2)(b) withdrew the complaint after the 5:44 mark of the audio file. He stated that he will return a written withdrawal statement to the CCRB, and a withdrawal statement was mailed to him on April 10, 2017. § 87(2)(b) was also informed that if at a later date he wishes to reopen the case, he must make a written request to the CCRB. Mgr. Almeyda reviewed the audio file in question and confirmed that it complies with agency standards. Also on April 10, 2017, the undersigned attempted to contact § 87(2)(b) in order to confirm that he wishes the case to be closed as "complaint withdrawn" as opposed to "victim uncooperative." However, § 87(2)(b) was unavailable. It is therefore recommended that this case be closed as **complaint withdrawn**.

Squad: 1

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date